

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.

Respondents & Third-Party Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,
Third-Party Respondent.

JOINT STATUS REPORT 8 (APRIL 2026)

Pursuant to 46 C.F.R. §502.141(h), the March 23, 2026 Order Granting Joint Motion to Extend Deadlines and Third Amended Scheduling Order (the “Scheduling Order”), Samsung Electronics America, Inc., (“Complainant” or “SEA”), and Orient Overseas Container Line Limited, and OOCL (Europe) Limited (“Respondents” or “OOCL,” and collectively with SEA, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report.¹

¹ Each Party has prepared its respective portion of this Joint Status Report. Accordingly, execution of this Report by a Party shall not be interpreted as agreement by that Party with statements made herein by the other Party.

Complainant – Samsung Electronics America, Inc.

1. DISCOVERY:

a. Current Status

SEA fully completed its production of documents and other discovery obligations as of November 24, 2025. To date, SEA has produced 240,155 documents comprising 1,058,752 pages.

OOCL has still not yet completed its production or discovery obligations. As of the date of this report, OOCL has produced 18,681 documents comprising 58,575 pages. OOCL states in its Discovery Declarations filed March 13, 2026, that OOCL collected an additional approximately 91 gigabytes of data, which it transmitted to its eDiscovery vendor on February 23, 2026. But **no** additional productions have yet been sent to SEA. SEA is awaiting further production by OOCL from this collection.

However, SEA must raise the alarm in connection with a disclosure in the declaration of OOCL's eDiscovery vendor (the "Carruth Declaration"). Mr. Carruth states that a corrupted search index and data "anomaly" caused documents to be missed across OOCL's prior productions. This appears to mean that all of OOCL's searches and associated productions will need to be performed again to ensure completeness. This is on top of the additional email databases that are currently being searched. Moreover, as set forth more fully below, OOCL has failed to comply with the ALJ's order with regard to its discovery declarations. SEA has serious concerns that OOCL's dilatory conduct, and additional expected productions from OOCL and their associated timelines will negatively impact the current discovery deadlines and the resolution of this matter.

b. Overview of Discovery and Related Motions

With respect to discovery progress between the Parties since March 2nd, the parties met and conferred on JSR 7 (March 2026) and subsequently filed that report alongside a jointly proposed procedural schedule. On March 6, 2026, OOCL sent SEA its Second Supplemental Responses to Complainant's Initial Discovery Requests.

On March 10, 2026, at OOCL's request, SEA responded to OOCL's proposed additional search terms by offering comments and additional suggestions. On March 11, 2026, SEA sent OOCL a letter expressing again SEA's concerns that OOCL's verification of discovery responses were not made by an officer of Respondents, or by a person with the appropriate documented authority of either Respondent. No response to this letter has been received to-date.

On March 13, 2026, OOCL submitted its Discovery Declarations as ordered by Judge Ambrow on February 20, 2026. The declarations were made by Mr. Kenneth Carruth, III, Assistant Director of CoDiscover, OOCL's ediscovery vendor; Mr. Gavin Murdoch, Vice President Risk and Compliance, OOCL (USA); and Ms. Tracy Sha, Director, Documentation and Invoicing, OOCL (USA), Inc. The Declarations are revealing, but well short of the full extent of information ordered by the Presiding Officer in this matter.

In the Carruth Declaration, OOCL's ediscovery vendor disclosed multiple discovery failures. CoDiscover analyzed two custodians and found a data "anomaly"-- colloquially identified as a "glitch" -- in the OOCL data that prevents keyword searches from being performed correctly. In short, OOCL's data searches did not return the full scope of responsive information. Mr. Carruth's declaration addressed only two custodians, but it is likely that the so-called "glitch" extends beyond the two analyzed custodians. SEA understands that CoDiscover is now conducting a full re-review of OOCL's earlier document production with additional suggested terms.

Although expressly required by the ALJ's Order that OOCL describe its search process "**in detail**" (emphasis added), including the date ranges and search terms used, neither the Murdoch Declaration nor the Carruth Declaration sheds light on the original searches used in OOCL's document collection. Specifically, Mr. Murdoch's declaration states that he "directed the collection of documents from all OOCL sources likely to have responsive information" but does not state how such responsiveness determinations were made, or how documents were searched for and/or collected. SEA has requested further explanations by letter.

On March 23, 2026, Judge Ambrow issued his "Order Granting Joint Motion to Extend Deadlines and Third Amended Scheduling Order."

Notwithstanding the foregoing issues, SEA has cooperated with OOCL's request for suggestions with regard to suggestions for additional general search terms. At OOCL's request, SEA provided a list of additional suggested search terms but expressly noted that OOCL, not SEA would better know OOCL's internal organization, data systems, potentially responsive custodians, and terminology, and accordingly SEA's suggestions could not encompass the full scope of searches that would likely be necessary for OOCL to fulfill its discovery obligations. SEA further reminded OOCL that the ultimate obligation to comply with SEA's discovery requests remains with OOCL.

c. April 30, 2026, Document Production Deadline

OOCL's March 13, 2026 Discovery Declarations raise serious concerns about OOCL's ability to complete its document production by the April 30, 2026 deadline established by the Scheduling Order, issued March 23, 2026 in line with the Parties' proposed procedural schedule included in the March 2, 2026 JSR. SEA expects that OOCL will make updated document productions as soon as practicable, however:

- The Carruth Declaration discloses that a corrupted search index has necessitated a re-review of OOCL's full 3.591 terabyte collection
- The Carruth Declaration also discloses an additional 91 gigabytes of data provided to OOCL's ediscovery vendor on February 23, 2026.

SEA has requested OOCL to provide a date by which it expects to complete its discovery obligations, however SEA is well aware of the necessary review and processing time such large amounts of data entail, and so notes the likely potential issue to the Presiding Officer.

2. MOTIONS UPDATE

a. Petition for Attorney's Fees

On March 20, 2026, the Hon. Richard L. Ambrow issued an order denying SEA's & SEC's Petition for Attorney's Fees and denying SEA's Motion to Supplement its Petition for Attorney's Fees. SEA is evaluating an appeal of that decision, but any such appeal would not impact the procedural schedule.

3. MEDIATION

OOCL has confirmed that the mediator that SEA had proposed on December 15, 2025 was acceptable to OOCL, however SEA has just learned that while awaiting OOCL's response, the proposed mediator retired. Accordingly, the parties are reviewing additional potential mediators.

Respondents - Orient Overseas Container Line Ltd. and OOCL (Europe) Ltd.

1. DISCOVERY

As described below, OOCL has engaged in its best efforts to produce documents in response to SEA's additional discovery requests and allegations of deficiencies, has worked

hard to cooperate with SEA and has engaged in numerous, costly efforts to meet SEA's requests.

In preparation for the previous Joint Status Report, Counsel for OOCL explained its proposal for additional searches on February 23, 2026 and requested that SEA identify any additional custodians whose mailboxes should be searched, other than those who the parties had identified in their initial disclosures. OOCL further requested that SEA provide any additional search terms it believed should be applied when OOCL conducted its supplemental searched, in order to ensure there would be no further disputes regarding the adequacy of OOCL's supplemental productions. By email dated February 24, SEA initially declined to provide additional search terms but, following additional email exchanges and a meet and confer between the parties, changed this position and provided a list of additional search terms on March 10, 2026.

Since that time, OOCL has searched 3.591 terabytes of data, applying the search terms as discussed with and provided by SEA; and has also searched all of its accumulated data for documents in which the bills of lading and container numbers for the claims identified by SEA appear. OOCL is not only re-running these additional searches, it has re-run searches, as set out in a declaration served on SEA, when its discovery vendor discovered that an anomaly with the data had unintentionally impacted a prior production. OOCL is completing its analysis of these searches and will be imminently supplementing its earlier productions with an additional production.

OOCL's efforts have been complicated by SEA's insistence that OOCL produce voluminous documentation that already is or should be in the possession of SEA, such as copies of bills of lading and invoices. Although OOCL has agreed to submit this jointly, nothing in that

fact should be taken to mean OOCL agrees with SEA's remarks, which appear to be more appropriate in a motion than in a Status Report. SEA appears to be using this Status Report to insinuate that minor discrepancies between what SEA has in its possession and what OOCL has produced or will be producing and/or other issues with OOCL's searches – issues which OOCL has disclosed and is remedying as described above and elsewhere -- somehow casts doubt on the sufficiency of OOCL's entire production. Such insinuation should be disregarded. OOCL has been and remains committed to complying with its discovery obligations.

Regarding OOCL (Europe), Ltd. OOCL had previously explained on multiple occasions to SEA that because no cargo concerned in this proceeding had moved between Europe and the United States, there was no basis for OOCL searching for additional documents within OOCL (Europe), Ltd., as there was no reasonable likelihood that responsive documents would be found there. Nor were any employees of OOCL (Europe), Ltd. identified by either party in their initial disclosures.

On March 6, 2026, OOCL served on SEA Respondents' Second Supplemental Responses and Objections to Complainant's Initial Discovery Requests. These responses supplemented OOCL's responses to SEA's Interrogatories Nos. 3, 8, 16 and 18, and Requests for Production of Documents Nos. 3 and 11.

As ordered by the Presiding Officer, on March 13, OOCL served on SEA the declarations of Gavin Murdoch, Tracy Sha, both employees of OOCL (USA), Inc., and Kenneth Carruth, the employee of the discovery vendor in charge of processing documents provided by OOCL for production. All declarants attested to their personal knowledge under oath, as required by the Order. Mr. Murdoch, who also verified Respondents' Answer, meets the requirements of 46 C.F.R. 502.6(c) and 46 C.F.R. 502.145(b)(2).

SEA has not supplemented its response to OOCL's discovery requests, nor has it agreed to do so. This despite the fact that SEA's initial document production came well after the then-applicable discovery deadline, produced in an unorganized manner without adequate reference to the discovery request to which they might be responsive, and consisted of thousands of pages of non-responsive documents that appear completely unrelated to its claims against OOCL.

SEA has not supplemented its initial disclosures to add any individuals likely to have relevant information.

2. MEDIATION

OOCL remains open to mediation, had agreed to the mediator proposed by SEA and had proposed alternate dates to SEA. Yesterday, counsel for SEA advised that the mediator they selected had retired and was no longer available to mediate this case. OOCL is evaluating two alternate mediators who SEA had proposed yesterday.

Dated: April 1, 2026

Respectfully Submitted,

MILLS BLACK LLP

COZEN O'CONNOR, P.C.

By: /s/ **Peter F. Black**

By: /s/ **Christopher Raleigh**

Peter F. Black

Wayne R. Rohde

H. Allen Black

Christopher Raleigh

Imran O. Shaukat

Kathryn Sobotta

Kathryn Fitzgerald

Rachel Schwartz

1215 19th Street NW,

2001 M Street Northwest, Floor 5

Washington, D.C. 20036

Washington, DC 20036

Telephone: (202) 987-4100

Telephone: 202-463-2507

Email: pblack@millsblack.com

Facsimile: 202-640-5912

Email: hallenblack@millsblack.com

Email: wrohde@cozen.com

Email: ishaukat@millsblack.com

Email: craleigh@cozen.com

Email: kfitzgerald@millsblack.com

Email: ksobotta@cozen.com

Email: rschwartz@cozen.com

*Counsel to Complainant, Samsung
Electronics America, Inc.*

*Counsel to Respondents, Orient Overseas
Container Line Limited and OOCL (Europe)
Limited*

**JEFFREY/FENNEMAN LAW +
STRATEGY, PLLC**

By: /s/ **Rebecca A. Fenneman**

Rebecca A. Fenneman

Kaya C. Massey

Nicholas L. Webb

700 12th Street, NW Suite 700

Washington, DC 20005

Email: RFenneman@JeffreyFenneman.com

Email: KMassey@JeffreyFenneman.com

Email: NWebb@JeffreyFenneman.com

*Counsel to Respondents, Orient Overseas
Container Line Limited and OOCL (Europe)
Limited*

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Richard Ambrow - *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. MILLS BLACK LLP
Counsel for Complainant
 - a. Peter F. Black (pblack@millsblack.com)
 - b. Allen Black (hablack@millsblack.com)
 - c. Imran O. Shaukat (ishaukat@millsblack.com)
 - d. Kathryn Fitzgerald (kfitzgerald@millsblack.com)
4. JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
Counsel for Respondents and Third-Party Complainants
 - a. Rebecca A. Fenneman (RFenneman@JeffreyFenneman.com)
 - b. Kaya C. Massey (KMassey@JeffreyFenneman.com)
 - c. Nicholas L. Webb (NWebb@JeffreyFenneman.com)
5. COZEN O'CONNOR
Counsel for Respondents and Third-Party Complainants
 - a. Wayne R. Rohde (wrohde@cozen.com)
 - b. Christopher Raleigh (craleigh@cozen.com)
 - c. Rachel Schwartz (rschwartz@cozen.com)
 - d. Kathryn Sobotta (ksobotta@cozen.com)

Dated: April 1, 2026

By: /s/ **Peter F. Black**